

		that are necessary to justify Plaintiff's opposition to Defendants' Motion for Summary Judgment, but which currently cannot be presented because Defendants have failed and refused to produce requested financial records and discovery regarding their actual fees, commissions, and total compensation collected in connection with the purchase and sale transaction of R & R Accounting Services." Bakhos Decl.¶3.] • The specific reasons why such evidence cannot be presented at the present time; ["To date, Defendants have failed to produce complete accounting records or ledger entries detailing the actual compensation, side payments, or dual commissions received from all parties to the transaction." Id.¶5c.] • An estimate of the time necessary to obtain such evidence; [No estimate provided.] • The specific steps or procedures the opposing party intends to utilize to obtain such evidence. [CCP § 437c(h); ["Plaintiff is actively preparing a Motion to Compel." Id.¶6.] What is clear is that Plaintiff did not serve his first set of discovery (as to an unpled theory of liability) until April 22, 2026, which was almost seven (7) months after Defendants' filed their Answer herein. Worse yet, Defendants argue in the Reply that Plaintiff had supplemental responses by August 3, 2026—that is, before filing the opposition. Plaintiff has failed to demonstrate diligence in obtaining discovery, and Plaintiff has filed to seek amendment to his Complaint to include these new theories of liability. As such, the Court GRANTS Defendants' Motion for Summary Judgment, and DENIES Plaintiff's request for a continuance. Defendants' evidentiary objections are sustained. <i>Defendants to give notice.</i>
111	Cummings vs. Kia America, Inc., 25-01500652	There are two motions on calendar: (1) Plaintiff Rosa Cummings' ("Plaintiff") Motion to Withdraw or Amend Deemed Admissions and (2) Defendant Kia America, Inc.'s ("Defendant") Motion for Summary Judgment. In Plaintiff's motion, she moves pursuant to Code of Civil Procedure section 2033.300. Defendant moves for summary judgment

1. Plaintiff's Motion to Withdraw or Amend Deemed Admissions

Plaintiff moves pursuant to Code of Civil Procedure section 2033.330 to withdraw and amend the admissions deemed admitted against her by the Court's April 2, 2026 order with respect to Defendant Kia America, Inc.'s ("Kia") Requests for Admission, Set One (Nos. 1–11), and (1) deeming Plaintiff's March 12, 2026, responses as her operative responses thereto; or (2) in the alternative, permitting Plaintiff to serve amended responses to the Requests for Admissions, Set One, within twenty (20) days of the Court's Order.

Code of Civil Procedure section 2033.300 states:

"(a) A party may withdraw or amend an admission made in response to a request for admission only on leave of court granted after notice to all parties.

(b) The court may permit withdrawal or amendment of an admission only if it determines that the admission was the result of mistake, inadvertence, or excusable neglect, and that the party who obtained the admission will not be substantially prejudiced in maintaining that party's action or defense on the merits.

(c) The court may impose conditions on the granting of the motion that are just, including, but not limited to, the following:

(1) An order that the party who obtained the admission be permitted to pursue additional discovery related to the matter involved in the withdrawn or amended admission.

(2) An order that the costs of any additional discovery be borne in whole or in part by the party withdrawing or amending the admission." (Code Civ. Proc., § 2033.300.)

Here, the Court finds that Plaintiff is entitled to relief from the facts deemed admitted pursuant to the Court's 04/02/2026 order. For the reasons explained below, the Motion is GRANTED.

The requests for admission at issue were deemed admitted by the Court on 04/02/2026 after the record presented to the Court reflected that Plaintiff failed to provide discovery and failed to oppose the motion.

The evidence submitted in support of this motion shows that Plaintiff served responses to Request for Admission, Set One on 03/12/2026, which was before the 04/02/2026 hearing. Such responses, however, were not verified. Neither Defendant nor Plaintiff informed the Court that Plaintiff was attempting to provide responses.

Plaintiff's counsel testifies that such responses were not provided earlier because Plaintiff's case was changing attorneys within the same firm, with her present handling attorney assuming "responsibility for this matter on or about June 1, 2026" and her prior counsel no longer with the firm starting in early April of 2026. (ROA 81, Declaration of Roy Enav, ¶ 3.) Plaintiff's counsel further testifies "the failure to serve timely verified responses was the result of inadvertence and oversight in the handling of the file by prior counsel, and not the product of any deliberate or tactical decision." (ROA 81, Declaration of Roy Enav, ¶ 8.) Moreover, Plaintiff's counsel testified "I am aware of no facts indicating that Plaintiff herself caused, directed, or contributed to the failure. To the contrary, the file reflects that Plaintiff promptly provided the information requested of her in order to prepare her responses." (Ibid.)

Plaintiff served her verified responses to the Requests for Admission on June 10, 2026. (ROA 81, Declaration of Roy Enav, ¶ 9.)

Under these circumstances, the Court finds that the admissions were the result of mistake, inadvertence, or excusable neglect. In addition, the Court finds that Defendant will not be substantially prejudiced in maintaining a defense on the merits. The Court acknowledges that Defendant already file a motion for summary judgment and are prejudiced to the extent that Defendant expended time and resources in order to prepare this motion. This prejudice, however, is not so substantial as to prevent a resolution on the merits. Defendant will be permitted to file another motion for summary judgment to the extent it wishes to do so.

Given the above, the Motion is GRANTED.

The Court's 04/02/2026 order deeming requests for admission admitted is VACATED.

To the extent that the responses provided by Plaintiff on June 10, 2026 are not satisfactory to Defendant, Defendant is granted 45 days leave to file a motion to compel further, to be calculated from the date of this order.

Plaintiff to give notice.

Defendant's objections to the Roy Enav are OVERRULED.

The Court will not rule on the objections to Plaintiff's declaration as the Court finds that the information contained in the Enav declaration supports the Court's decision to grant the motion.

2. Defendant's Motion for Summary Judgment

Defendant's motion for summary judgment depends on facts deemed admitted in the Court's 04/02/2026 Minute Order deeming requests for admission admitted by Plaintiff. This order has been VACATED and therefore the requests for admission discussed and replied upon in the motion for summary judgment are no longer deemed admitted by Plaintiff.

Pursuant to Code of Civil Procedure sections 437c, the separate statement shall only set forth material facts and there must be no triable issue as to any material fact presented in the separate statement. (Code Civ. Proc., § 437c, subd. (b) and Cal. Rules of Court, rule 3.1320, subd.(d)(1).) Accordingly, if one material fact is disputable, then the issue fails. Such is the case here since at least some of the "undisputed material facts" in support of each issue presented in the motion and separate statement rely upon the facts deemed admitted in the Court's 04/02/2026 Minute Order. The order deeming these facts admitted has been vacated and therefore the facts are no longer deemed admitted and are not "undisputed facts" that support Defendant's motion for summary judgment.

As such, the Motion for Summary Judgment is DENIED WITHOUT PREJUDICE.

Plaintiff to give notice.

112	Clay vs. Delgadillo, 23-01359983	<i>The August 20, 2026 Minute Order (ROA 363) contains the tentative ruling for the motion. The Court makes the following corrections to the August 20, 2026 Tentative Ruling:</i> <i>The second paragraph from the bottom on page 6 should read: The Court finds Request No. 6 to be overbroad as to time and therefore limits the request to September 2022 to October 2022.</i> <i>In the last paragraph on the bottom of page 6, the first two sentences should read: The Court finds Requests Nos. 15-17 and 19-23 to be overbroad as to time as the records sought are from October 2022, “to date.” The Court limits these requests to documents from October 2022 to October 2023.</i>
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